

Missouri Month-to-Month Lease Agreement

This Lease Agreement ("Lease") is entered by and between _____ ("Landlord") and _____ ("Tenant") on _____. Landlord and Tenant may collectively be referred to as the "Parties."

WITNESSETH:

That in consideration of the mutual agreements herein contained, Landlord and Tenant hereby agree and covenant to and with each other as follows:

I. LEASED PROPERTY, LEASE DURATION LENGTH, AND PROPERTY USE.

- Lease Duration Length.** This Lease shall commence on _____ [start date] continue as a month-to-month tenancy until such time as it is terminated by either party (the "Lease Term"). To terminate this Lease, either Landlord or Tenant must provide written notice at least _____ days prior to the date on which the Premises are to be vacated.
- Property Description.** Landlord leases to Tenant, and Tenant rents from Landlord, the premises located at: _____ ("the "Premises").
- Premises Use.** Tenant shall use the Premises as a residence only, and for no other purpose. The Premises shall not be used to carry on any type of business or trade, unless Tenant has received the prior written consent of the Landlord. Tenant will comply with all laws, rules, ordinances, statutes and orders regarding the use of the Premises.
- Occupants to Reside on Premises.** Tenant agrees that no more than _____ persons may reside on the Premises, unless Tenant has received the prior written consent of the Landlord.
- Premises Condition and Inspection.** Tenant or Tenant's agent has inspected the Premises, the fixtures, the grounds, building and improvements and acknowledges that the Premises are in good and acceptable condition and are habitable. If, in Tenant's opinion, the condition of the Premises has changed at

any time during the Lease Term, Tenant shall promptly provide reasonable notice to Landlord.

II. RENTAL PAYMENT SCHEDULE AND ASSOICIATED FEES.

1. **Rental Payments.** Tenant shall pay to Landlord during the Lease Term as rent for the Premises the amount of \$_____ (“Rent”) each month in advance on the first day of each month. If the Lease Term does not start on the first day of the month or end on the last day of a month, the Rent for the relevant month will be prorated accordingly.
2. **Payment Procedure.** The Rent, and all other sums payable by Tenant to Landlord under this Lease, shall be payable in Check or Money Order and shall be paid to _____ and Landlord’s address, at _____, or at any other address designated by Landlord.
3. **Late Fees.** If any amounts due under the Lease are more than _____ days late, Tenant agrees to pay a late fee of \$_____.
4. **Insufficient Funds.** Tenant agrees to pay the charge of \$_____ for each check provided by Tenant to Landlord that is returned to Landlord for lack of sufficient funds.

III. SECURITY DEPOSIT.

1. **Security Deposit.** On execution of this Lease, Tenant shall deposit with Landlord, in trust, a security deposit of \$_____ (the “Deposit”), as security for the performance of Tenant’s obligations under this Lease. Landlord may (but shall have no obligation to) use the Deposit or any part thereof to cure any breach or default of Tenant under this Lease, or to compensate Landlord for any damage as it incurs as a result of Tenant’s failure to perform any of Tenant’s obligations hereunder. Landlord is not limited to the Deposit to recoup damage costs, and Tenant remains liable for any balance. Tenant shall not apply or deduct any portion of the Deposit from any month’s rent, including the last month of the rental term. Tenant shall not use or apply the Deposit in lieu of payment of Rent. If Tenant breaches any terms or conditions of this Lease, Tenant shall forfeit the Deposit, as permitted by law.
2. **Return of Deposit.** In the event that Tenant shall fully and faithfully comply with all of the terms, provisions, covenants and conditions of this Lease, the Deposit shall be returned to Tenant after the date fixed as the end of the Lease and after

delivery of entire possession of the Premises to Landlord. No interest will be paid on any Security Deposit returned.

IV. DEFAULT.

1. **Event of Default.** If Tenant defaults in fulfilling any of the covenants of this Lease, Tenant shall be in default of this Lease. Then, in any one or more of such events, subject to any statute, ordinance or law to the contrary, and upon Landlord serving a written seven (7) days' notice upon Tenant specifying the nature of said default and upon the expiration of said seven (7) days, if Tenant does not cure a default of which he has been notified, or if the default cannot be completely cured or remedied in seven days, Landlord may at Landlord's option: (i) cure such default and add the cost of such cure to Tenant's financial obligations under the Lease; or (ii) declare Tenant in default and terminate the Lease.
2. **Physical Remedies.** If the notice provided for in Section IV.1 has been given, and the term shall expire as noted, or if Tenant shall make default in the payment of Rent, then Landlord may without notice, as permitted by law, re-enter the Premises either by force or otherwise, dispossess Tenant by summary proceedings or otherwise, and retake possession of the Premises. Tenant hereby waives the service of notice of intention to re-enter or institute legal proceedings to that end.
3. **Financial Remedies.** In the event of any default, re-entry, expiration and/or dispossession by summary proceedings or otherwise, (i) the Rent shall become due thereupon and be paid up to the time of such re-entry, dispossession or expiration, together with such expenses Landlord may incur for legal expenses, attorneys' fees, brokerage, and/or putting the Premises in good order; (ii) Landlord may re-let the Premises or any part or parts thereof; and/or (iii) Tenant shall also pay Landlord liquidated damages for his failure to observe and perform the covenants in this Lease. Landlord may, at his sole option, hold Tenant liable for any difference between the Rent payable under this Lease during the balance of the Lease Term, and any rent paid by a successive Tenant if the Premises are re-let. In the event that after default by Tenant Landlord is unable to re-let the Premises during any remaining term of this Lease, Landlord may at his option hold Tenant liable for the balance of the unpaid Rent under the Lease for the remainder of the Lease Term.

V. QUIET ENJOYMENT.

1. Landlord covenants and agrees with Tenant that upon Tenant paying Rent, and observing and performing all of the terms, covenants and conditions on Tenant's

part to be observed and performed under this Lease, Tenant may peaceably and quietly enjoy the Premises, subject nonetheless to the terms and conditions of this Lease.

VI. ASSIGNMENT AND SUBLETTING.

1. **Assignment.** Tenant expressly covenants that it shall not assign or sublease any interest in this Lease without prior written consent of the Landlord, which consent shall not be unreasonably withheld. Any assignment or sublease without Landlord's written prior consent shall, at Landlord's option, terminate this Lease. No assignment, underletting, occupancy or collection shall be deemed a waiver of the provisions of this Lease, the acceptance of the assignee, undertenant or occupant as tenant, or a release of Tenant from the further performance by Tenant of covenants on the part of Tenant in this Lease.

VII. THE PREMISES: POSSESSION; TREATMENT; ETC.

1. **Possession and Surrender.** Tenant shall be entitled to possession of the Premises on the first day of the Lease Term, and Tenant shall not be obliged to accept possession of the Premises prior to the first day of the Lease Term. At the expiration of the Lease Term, Tenant shall peaceably surrender the Premises to Landlord or Landlord's agent in good condition, as it was at the commencement of the Lease, subject to ordinary wear and tear.
2. **Utilities and Services.** Tenant will be responsible for all utilities and services required on the Premises, except that Landlord will provide the following:

3. **Pets.** Tenant is not permitted to keep any Pets on the Premises without the prior written consent of Landlord.
4. **Hazardous Materials.** Tenant shall not keep or have on or around the Premises any item of a dangerous, flammable or explosive nature that might unreasonably increase the risk of fire or explosion on or around the Premises or that might be considered hazardous by any responsible insurance company.
5. **Alterations and Improvements.** Tenant agrees not to make any improvements or alterations to the Premises without the prior written consent of Landlord. If any alterations, improvements or changes are made to or built on or around the Premises, with the exception of fixtures and personal property that can be

removed without damage to the Premises, they shall become the property of Landlord and shall remain at the expiration of the Lease, unless otherwise agreed in writing.

6. **Maintenance and Repair.** Tenant will, at Tenant's sole expense, keep and maintain the Premises in good, clean and sanitary condition and repair during the term of this Lease and any renewal thereof. Tenant shall be responsible to make all repairs to the Premises and fixtures that may have been damaged by Tenant's misuse, waste or neglect, or that of the Tenant's family, agent or visitor. Tenant agrees that no painting will be done on or about the Premises without the prior written consent of Landlord. Tenant shall promptly notify Landlord of any damage, defect or destruction of the Premises, or in the event of the failure of any of the appliances or equipment. Landlord will use his best efforts to repair or replace any such damaged or defective area, appliance or equipment.
7. **Damage to Premises.** In the event the Premises are destroyed or rendered wholly uninhabitable by fire, storm, earthquake or other casualty not caused by the negligence of Tenant, this Lease shall terminate from such time except for the purpose of enforcing rights that may have then accrued hereunder. The Rent provided for herein shall then be accounted for by and between Landlord and Tenant up to the time of such injury or destruction of the Premises, Tenant paying Rent up to such date and Landlord refunding Rent collected beyond such date. Should a portion of the Premises thereby be rendered uninhabitable, the Landlord shall have the option of either repairing such injured or damaged portion or terminating this Lease. In the event that Landlord exercises its right to repair such uninhabitable portion, the Rent shall abate in the proportion that the injured parts bears to the whole Premises, and such part so injured shall be restored by Landlord as speedily as practicable, after which the full Rent shall recommence and the Lease continue according to its terms.

NO SMOKING allowed in interior premises.

VIII. INSPECTION.

1. **Inspection of Premises.** Landlord and Landlord's agents shall have the right at all reasonable times during the term of this Lease and any renewal thereof to enter the Premises for the purpose of inspecting the Premises and all buildings and improvements thereon, and for the purposes of making any repairs, additions or alterations as may be deemed appropriate by Landlord for the preservation of the Premises or the building. Tenant agrees to make the Premises available to Landlord or Landlord's agents to inspect, to make repairs or improvements, to supply agreed services, to show the Premises to prospective

buyers or tenants, or to address an emergency. Except in an emergency situation, Landlord shall give Tenant reasonable notice of intent to enter. For these purposes, twenty-four (24) hour notice shall be deemed reasonable. Tenant shall not, without Landlord's prior written consent, add, alter or re-key any locks to the Premises. At all times Landlord shall be provided with a key or keys capable of unlocking all such locks and permitting entry. Tenant further agrees to notify Landlord in writing if Tenant installs any burglar alarm system, including instructions on how to disarm such alarm in case of emergency entry.

IX. ABANDONMENT.

1. **Abandonment.** If at any time during the term of this Lease Tenant abandons the Premises or any part thereof, Landlord may at his option obtain possession of the Premises by any legal means without liability to Tenant and may, at Landlord's option, terminate the Lease. Abandonment is defined as absence of the Tenant from the Premises for at least _____ consecutive days without notice to Landlord. If Tenant abandons the Premises while the Rent is outstanding for more than 15 days and there is no reasonable evidence, other than the presence of Tenant's personal property, that Tenant is occupying the unit, Landlord may at Landlord's option terminate this Lease and regain possession of the Premises in the manner prescribed by law. If Landlord's right of reentry is exercised following abandonment of the Premises by Tenant, then Landlord shall consider any personal property belonging to Tenant and left on the Premises to also have been abandoned, in which case Landlord may dispose of all such personal property in any manner Landlord shall deem proper and Landlord is hereby relieved of all liability for doing so.

X. EXTENDED ABSENCES.

1. **Extended Absences.** In the event Tenant will be away from the Premises for more than _____ consecutive days, Tenant agrees to notify Landlord in writing of such absence. During such absence, Landlord may enter the Premises at times reasonably necessary to maintain the property and inspect for damages and needed repairs.

XI. SECURITY SYSTEM.

1. **Security System.** Tenant understands that Landlord does not provide any security alarm system or other security for Tenant or the Premises. In the event any alarm system is provided, Tenant understands that such alarm system is not warranted to be complete in all respects or to be sufficient to protect Tenant or the Premises. Tenant releases Landlord from any loss, damage, claim or injury

resulting from the failure of any alarm system, security or from the lack of any alarm system or security.

XII. INSURANCE.

1. **Insurance.** Landlord and Tenant shall each be responsible for maintaining appropriate insurance for their respective interests in the Premises and property located on the Premises. Tenant understands that Landlord will not provide any insurance coverage for Tenant's property. Landlord will not be responsible for any loss of Tenant's property, whether by theft, fire, riots, strikes, acts of God or otherwise. Landlord encourages Tenant to obtain renter's insurance or other similar coverage to protect against risk of loss.

XIII. NO OTHER REPRESENTATIONS, CONSTRUCTION; GOVERNING LAW; CONSENTS.

1. **No Other Representations.** Tenant expressly acknowledges and agrees that Landlord has not made and is not making, and Tenant, in executing and delivering this Lease, is not relying upon, any warranties, representations, promises or statements, except to the extent that they are expressly set forth in this Lease. It is understood and agreed that all understandings and agreements heretofore had between the parties are merged into this Lease, which alone fully and completely expresses their agreements.
2. **Construction and Severability.** If any of the provisions of this Lease, or the application thereof to any person or circumstances, shall, to any extent, be held invalid or unenforceable for any reason, the remainder of this Lease, or the application of such provision or provisions to persons or circumstances other than those as to whom or which it is held invalid or unenforceable shall not be affected thereby, and every provision of this lease shall be valid and enforceable to the fullest extent permitted by law. If any provision of this Lease is deemed invalid or unenforceable by any court of competent jurisdiction, and if limiting such provision would make the provision valid, then such provision shall be deemed to be construed as so limited.
3. **Governing Law.** This Lease shall be governed in all respects by, and construed in accordance, with the laws of the State of Missouri.

XIV. PARTIES BOUND.

1. **Binding Effect.** The covenants and conditions contained in the Lease shall apply to and bind the Parties and the heirs, legal representatives, successors and permitted assigns of the Parties.
2. **Exception.** The obligations of Landlord under this Lease shall not be binding upon Landlord named herein with respect to any period subsequent to the transfer of his interest in the Premises as owner or lessee thereof, and in event of such transfer said obligations shall thereafter be binding upon each transferee of the interest of Landlord.

XV. MISCELLANEOUS.

1. **Entire Agreement.** This Lease contains all of the understandings relating to the leasing of the Premises and the Landlord's obligations in connection therewith and neither the Landlord nor any agent or representative of the Landlord has made or is making, and the Tenant in executing and delivering this Lease is not relying upon, any warranties, representations, promises or statements whatsoever, except to the extent expressly set forth in this Lease. All understandings and agreements, if any, heretofore had between the parties are merged in this Lease, which alone fully and completely expresses the agreement of the parties. This Lease may be modified in writing and must be signed by both Landlord and Tenant.
2. **No Waiver.** The failure of either party to insist in any instance upon the strict keeping, observance or performance of any provision of this Lease or to exercise any election in this Lease shall not be construed as a waiver or relinquishment for the future of such provision, but the same shall continue and remain in full force and effect. No waiver or modification by either party of any provision of this Lease shall be deemed to have been made unless expressed in writing and signed by the party to be charged. The receipt and retention by the Landlord of Rent with knowledge of the breach of any provision of this Lease shall not be deemed a waiver of such breach.
3. **Cumulative Rights.** Landlord's and Tenant's rights under this Lease are cumulative and shall not be construed as exclusive of each other unless otherwise required by law.
4. **Notice.** Any notice required or otherwise given pursuant to this Lease shall be in writing and mailed certified return receipt requested, postage prepaid, or delivered by overnight delivery service, if to Tenant, at the Premises and if to Landlord, at the address for payment of Rent. Either party may change such addresses from time to time by providing notice as set forth above.

5. **Headings.** The headings of the sections of this Lease are for convenience only and are not to be considered in construing said sections.
6. **Holdover.** If the Tenant holds-over in the Premises after the expiration or termination of this Lease without the consent of the Landlord, the Tenant shall pay as hold-over rental a monthly rental rate of \$_____, unless otherwise agreed by the parties in writing; provided, however, that nothing in the foregoing provisions of this Section XV.6 shall be construed to limit or preclude any other rights or remedies available to the Landlord at law or in equity by reason of such holding-over by the Tenant, including, without limitation, the recovery by the Landlord against the Tenant of any sums or damages to which, in addition to the damages specified above, the Landlord may lawfully be entitled. A month-to-month tenancy shall be created by the payment of this hold-over rental, subject to the same terms and conditions of this Lease, and shall be terminable on thirty (30) days' notice by either party, or on longer notice if required by law.
7. **Indemnification.** To the extent permitted by law, Tenant will indemnify and hold Landlord and Landlord's property, including the Premises, free and harmless from any and all liability for loss, claims, injury to or death of any person, including Tenant, or for damage to property arising from Tenant's use and occupation of the Premises, or from the acts or omissions of any person or persons, including Tenant, in or about the Premises with Tenant's express or implied consent, except Landlord's act or negligence.
8. **Legal Fees.** In the event of any legal action by the parties arising out of this Lease, the losing party shall pay the prevailing party's reasonable attorney's fees and costs in addition, to all other awarded relief.
9. **Keys.** Tenant will be given _____ key(s) to the Premises, entrance doors and _____ mailbox key(s). Tenant shall be charged \$_____ if all keys are not returned to Landlord following termination of the Lease.

ADDITIONAL TERMS AND CONDITIONS. [check all that apply]:

- ☐ **DISPLAY OF SIGNS.** Landlord or Landlord's agent may display "For Sale," "For Rent," "Vacancy" or similar signs on or about the Premises and enter to show the Premises to prospective tenants during the last sixty (60) days of this Lease. Tenant agrees that no signs shall be placed on the Premises without the prior written consent of Landlord.

☐ **NOISE.** Tenant shall not cause or allow any unreasonably loud noise or activity in the premises that might disturb the rights, comforts and conveniences of other persons. No lounging or visiting will allowed in the common areas between the hours of _____p.m. and _____a.m. Furniture delivery and removal will take place at such times as designated by Landlord.

☐ **PARKING.** Tenant shall be entitled to use _____ parking space(s) for the parking of motor vehicle(s) located _____. The parking space will be used exclusively for the parking of passenger vehicles and not to be used for washing, painting or servicing of vehicles. Tenant's vehicle will occupy the parking space entirely at the risk of Tenant. If Tenant shall dispose of his vehicle or not require parking accommodation for any other reason, Tenant shall not assign or sublet the parking space unless expressly granted prior permission by Landlord.

☐ **BALCONIES.** Tenant shall not use the Premises' balcony for the purpose of storage, drying clothes, cleaning rugs or grilling.

☐ **BICYCLES.** All bicycles owned by Tenant shall be stored only in the areas designated by Landlord and not in any other parts of the building including the hallways, entrances and lobbies.

☐ **LOCKING OF ENTRANCE DOORS.** Landlord reserves the right to close and keep locked all entrance doors of the building during such hours as Landlord deems advisable for the safety and protection of the building and its occupants. Tenant shall not prop open any entrance doors.

☐ **LIQUID-FILLED FURNITURE.** Tenant shall not use or have any liquid-filled furniture, including but not limited to waterbeds, on the premises without Landlord's prior written consent.

☐ **MANAGER.** The name, address and telephone number of the manager is:

_____.

☐ **BUILDING RULES.** Landlord may publish building rules from time to time, which will become part of this Lease and incorporated herein after thirty (30) days written notice to Tenant. Landlord will not be liable to Tenant for any individual's violation of these rules. Attached hereto as Exhibit A is a copy of the Premises' existing rules and regulations.

☐ **ADDITIONAL PROVISIONS.** [Specify "none" if there are no additional provisions]:

IN WITNESS WHEREOF, the parties have caused this Lease to be executed the day and year first above written.

Landlord's Signature: _____

Printed Name: _____ Date: _____

Tenant's Signature: _____

Printed Name: _____ Date: _____

Tenant's Signature: _____

Printed Name: _____ Date: _____

Legally Binding

Seek competent advice if not understood. Owners are Licensed Real Estate Agent.